

M/S Om Food Manufacturing Center v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 23 April 2026 · Writ - C No. 12303 of 2026 · **Interlocutory order; listed 6 May 2026 as fresh. The demand is stayed till the next date of hearing. The licensee is to demonstrate the provision under which it can raise a demand on bills already paid. Merits and Clause 6.5 maintainability not decided.**

HEADNOTE

An interlocutory order on a commercial consumer's writ against a post-payment demand. The petitioner's load was enhanced to 140 KV on 14 July 2023; consumption bills were thereafter paid. After about two years the licensee issued a notice of 'mistake in connection' demanding in excess of Rs. 54 lacs, with a disconnection threat and no theft allegation. The licensee submitted that a bill dispute is to be raised under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and that the writ is not maintainable. The Court did not relegate. It characterised the controversy as the supply company raising a dispute in respect of bills already paid and due discharge obtained, on the footing that earlier bills were omitted or incorrect. On query, licensee's counsel sought adjournment to demonstrate the applicable provision under which such a demand can be raised. Adjournment was granted; the demand remains stayed till the next date; listed 6 May 2026 as fresh. Not a final construction of Clause 6.5, nor a decision on the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Licensee's post-payment demand on 'incorrect' bills — Clause 6.5 relegation not applied; demand stayed pending demonstration of the authorizing provision

QUESTION

Where a consumer has paid the bills issued after a load enhancement, and the licensee later raises a large demand alleging its own mistake in connection, is the writ not maintainable because a bill dispute must be raised under Clause 6.5?

HOLDING

The Court did not relegate to Clause 6.5 and did not decide maintainability. It recorded that the supply company is raising a dispute in respect of bills already paid and due discharge obtained by the petitioner, because (on the licensee's case) there was omission and incorrect bills were raised. On query, licensee's counsel sought adjournment to demonstrate the applicable provision under which the supply company can raise a demand on incorrect bills. Adjournment was granted; the demand remains stayed till the next date of hearing; listed 6 May 2026 as fresh. ¶ 1-5

LIMITING FACTS

Petitioner M/S Om Food Manufacturing Center; commercial connection; load increased to 140 KV on 14 July 2023; demand in excess of Rs. 54 lacs; no theft allegation; respondents 2 and 3 are the supply company. Petitioner's further submission (load increase and meter installation were not in the consumer's hands) was recorded but not decided.

FLAG Interlocutory only — listed 6.5.2026. Clause 6.5 was invoked by the licensee as a maintainability bar (the usual consumer bill-dispute channel: SCJ-013, SCJ-046, SCJ-083); this order does not apply it. Companion contrast: those cases relegate the consumer; here the Court treated the dispute as the licensee's, about already-discharged bills.

PRINCIPLE TAGS

licensee-demand-on-paid-bills-requires-shown-provision Interlocutory. Where the licensee, after due discharge of bills, raises a later demand on the footing that those bills were omitted or incorrect, the writ court stayed the demand and required the licensee to demonstrate the Code/Act provision that authorises it. Clause 6.5 was not applied as a bar. ¶ 3-4

NOT DECIDED — WHETHER THE WRIT IS NOT MAINTAINABLE AND THE CONSUMER MUST RAISE A CLAUSE 6.5 BILL DISPUTE

Invoked by the licensee; not decided. Adjournment granted instead. ¶ 2-4

NOT DECIDED — WHETHER, AND UNDER WHICH PROVISION, THE LICENSEE CAN RAISE A DEMAND ON BILLS ALREADY PAID / SAID TO HAVE BEEN INCORRECTLY RAISED

Expressly left for the licensee to demonstrate at the adjourned hearing. ¶ 3-4

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE DEMAND (IN EXCESS OF RS. 54 LACS) AND WHETHER THERE WAS A 'MISTAKE IN CONNECTION'

Not decided; demand stayed. No theft allegation on the record of this order. ¶ 1, 4